

**SUBSTITUTE FOR
HOUSE BILL NO. 4729**

A bill to amend 1974 PA 258, entitled
"Mental health code,"
by amending section 628 (MCL 330.1628), as amended by 1995 PA 290.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 628. (1) ~~The~~**Subject to subsection (2), the** court may
2 appoint as guardian of an individual with a developmental
3 disability ~~any~~**a** suitable individual or agency, public or private,
4 including a private association capable of conducting an active
5 guardianship program for an individual with a developmental
6 disability. The court shall not appoint the department of ~~mental~~
7 ~~health as guardian~~**health and human services** or any other agency,
8 public or private, that is directly providing services to the
9 individual **with a developmental disability**, unless no other



1 suitable individual or agency can be identified. In such instances,
2 guardianship by the provider ~~shall only~~ **must** continue **only** until
3 ~~such time as a~~ more suitable individual or agency can be appointed.

4 (2) The court shall appoint a guardian, if suitable and
5 willing to serve, in the following order of priority:

6 (a) A parent of the individual with a developmental
7 disability.

8 (b) A relative of the individual with a developmental
9 disability.

10 (c) A person, other than an individual, that is a professional
11 guardian or an individual professional guardian who is licensed
12 under article 14A of the occupational code, 1980 PA 299, MCL
13 339.1410 to 339.1413.

14 (d) If no candidates are suitable and willing to serve under
15 subdivisions (a) to (c), a person that the court determines is
16 suitable and willing to serve.

17 (3) Beginning 2 years after the effective date of the
18 amendatory act that added this sentence, the court shall not
19 appoint a person as a professional guardian unless the person is or
20 employs an individual licensed under article 14A of the
21 occupational code, 1980 PA 299, MCL 339.1410 to 339.1413.

22 (4) Beginning 2 years after the effective date of the
23 amendatory act that added this sentence, an employee of a
24 professional guardian described in subsection (3) shall not
25 independently make medical, psychological, financial, legal, or
26 housing decisions, as applicable, on behalf of an individual with a
27 developmental disability, unless the employee is licensed under
28 article 14A of the occupational code, 1980 PA 299, MCL 339.1410 to
29 339.1413.



1 (5) ~~(2)~~ Before the appointment **of a guardian**, the court shall
2 make a reasonable effort to question the individual **with a**
3 **developmental disability** concerning ~~his or her~~ **the individual's**
4 preference regarding the person to be appointed guardian, and **give**
5 **due consideration to** any preference indicated. ~~shall be given due~~
6 ~~consideration.~~

7 (6) As used in this section, "professional guardian" means
8 that term as defined in section 1106 of the estates and protected
9 individuals code, 1998 PA 386, MCL 700.1106.

10 Enacting section 1. This amendatory act does not take effect
11 unless House Bill No. 4728 of the 103rd Legislature is enacted into
12 law.